



***Discussing the ongoing
dispute in the Arctic region***

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United Nations Legal Committee (6th General Assembly Committee)

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I. Introduction

In the context of climate change, the Arctic region is gaining more importance, as it transforms into a geopolitical hotspot, with strategic, economic, and legal stakes for major powers. The main changes in geopolitics include redefinition of commercial routes, increasing access to natural resources and sovereignty disputes.

The melting of the ice will redefine new shipping routes; the Northern Sea Route and the Northwest Passage are increasingly navigable, making it easier and faster to connect Asia, Europe and North America. On the other hand, the Arctic holds vast untapped resources, including oil, minerals and fisheries. Additionally, the ice retreat may expose new land and seabeds, sparking overlapping claims where the UNCLOS and Arctic Council play a crucial role. Essentially, the region is emerging as a potential flashpoint for geopolitical tension influenced directly by climate change.

II. Definition of Key Terms

- **Arctic Sovereignty:** Claims and control that countries claim over land, sea and natural resources such as oil, gas, minerals, and fish) in the Arctic region. The main states implicated are those that border the region, called the Arctic Five: United States, Canada, Russia, Denmark, and Norway. These claims are increasingly significant and more difficult to solve due to melting ice, which is opening access to valuable resources and new shipping routes, intensifying both competition and cooperation in the region.
- **Continental Shelf:** Extended seabed area that stretches from a country's coastline beneath the ocean. Under the United Nations Convention on the Law of the Sea (UNCLOS), states can claim rights to explore and exploit natural resources on their continental shelf, even beyond 200 nautical miles if they can prove it is a natural extension of their land territory.
- **UNCLOS (United Nations Convention on the Law of the Sea):** International law treaty that regulates how countries control and use the world's oceans. UNCLOS also sets rules for determining continental shelf claims and provides mechanisms, including international tribunals, to resolve disputes between countries over maritime boundaries and ocean resources.
- **Natural resources:** The Arctic holds strategic mineral resources including rare-earth elements which are crucial in the rush to prosper in the renewable energy race or the electric vehicle. This growing demand is intensifying geopolitical competition in the region.
- **Exclusive Economic Zone (EEZ):** Extended sea zone up to 200 nautical miles from a country's coast, where it has special rights to explore, exploit, conserve, and manage marine resources, both living and

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non-living, within the seabed and waters. The UNCLOS establishes that it secures rights over fishing, energy production, and environmental protection.

- **Arctic Council:** Intergovernmental forum promoting cooperation, coordination, and interaction among Arctic states, Arctic Indigenous communities. Its main objectives include biodiversity protection, climate change monitoring, marine safety, and sustainable economic development.

III. Background Information

The ongoing dispute in the Arctic region is a geopolitical debate that involves geography, power and money. The concept of Arctic Exceptionalism, a belief that the Arctic is a uniquely peaceful region exempt from global conflict, is disappearing and opening the way for a Great Power Competition in the area.

The dispute in the Lomonosov Ridge:

- Underwater mountain range claimed by Canada, Russia and Denmark.
- The UN Convention on the Law of the Sea (UNCLOS) establishes that a country's territory ends 200 nautical miles from its coast.
- However, if a nation can prove that an underwater feature (like a ridge) is a "natural prolongation" (a geological extension) of its own landmass, it can claim the seabed much further out.

The opening up of new routes:

- **The Northwest Passage (NWP):** This route passes through Canada's Arctic Archipelago and, if the ice in the Arctic region melts, it will become more accessible, offering a shorter route between the Atlantic and Pacific Oceans.
- **The Northern Sea Route (NSR):** This route along the Russian coast will become more navigable, significantly shortening shipping times between Europe and Asia. This would boost Russia's strategic and economic influence, while increasing competition and geopolitical tension over control, security, and access to the route.

The importance of Greenland:

- **Strategic location:** Between the US, Canada and Europe, making it crucial for North Atlantic routes and global security.
- **Natural resources:** Including rare earth elements, minerals, and potential oil and gas reserves. As climate change reduces ice cover, these resources become easier to access and exploit.

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- **Accessible and economically viable:** Melting ice opens new opportunities for shipping, mining, and infrastructure development.



IV. Major Countries and Organizations Involved

The United States

The United States is the only Arctic state that has not ratified the United Nations Convention on the Law of the Sea, yet it still invokes its principles. In December 2023, it defined its Extended Continental Shelf (ECS), claiming about 288,000 square nautical miles of seabed to secure access to oil, gas, and critical minerals. A long-standing dispute exists with Canada over the Beaufort Sea boundary, as both sides use different methods to define the maritime border. At the same time, Russia rejects U.S. Arctic claims on legal grounds, arguing they lack legitimacy due to the U.S. not ratifying UNCLOS. Tensions also involve Denmark through Greenland, where the U.S. seeks greater strategic influence and aims to limit Chinese and Russian involvement. Additionally, the U.S. considers Arctic shipping routes to be international straits, while Canada and Russia view them as internal waters under their control.

Canada

Canada sees the Arctic as central to its identity and, by 2026, has launched a multi-billion-dollar strategy to assert sovereignty, build infrastructure, and counter both Russia and U.S. influence. The “Borealis” plan ensures a year-round military presence with high-tech monitoring and increased patrols, while aggressive seabed claims on the Lomonosov Ridge challenge Russia’s territory. Tensions with the U.S. persist over the Beaufort Sea and the Northwest Passage, and large-scale operations like NANOOK and Arctic Sentry integrate Canadian and NATO forces to deter incursions and demonstrate Arctic control.

Russia

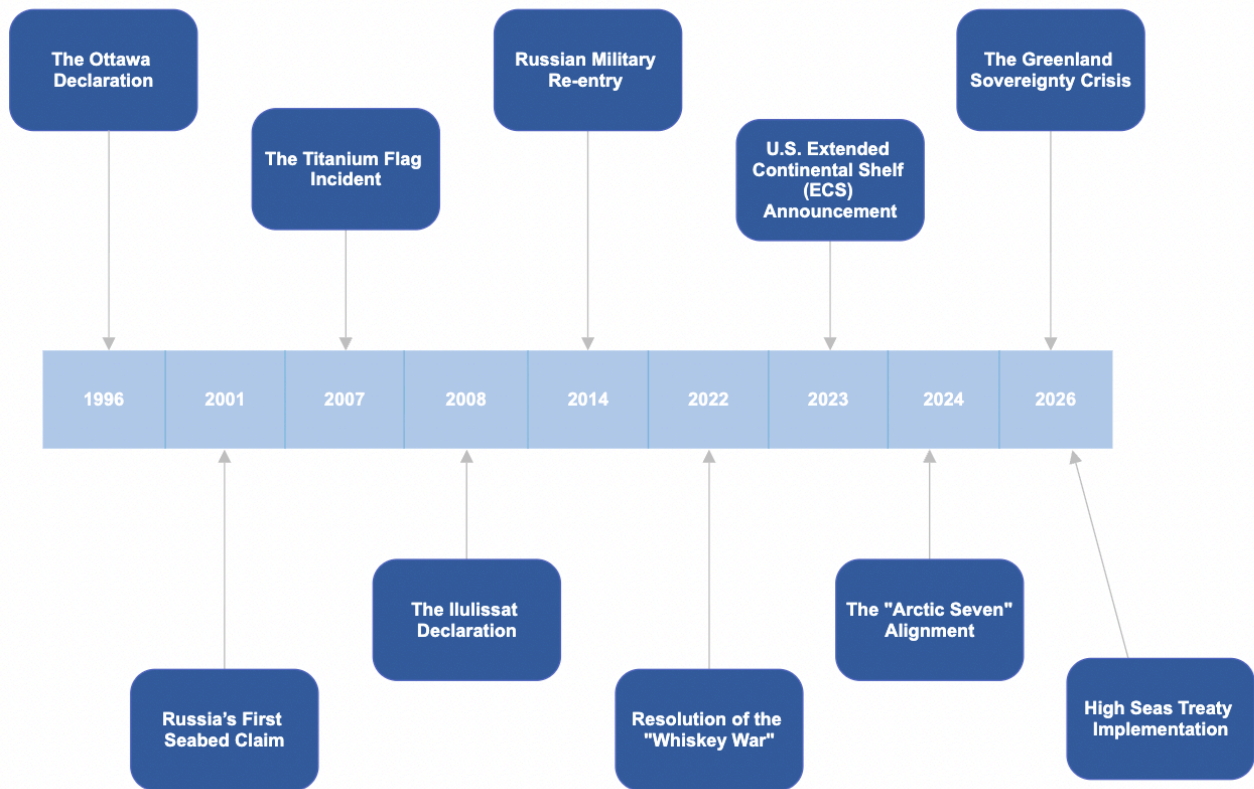
The country maintains a strong military presence with bases, nuclear submarines, and coastal defenses, while warning that potential U.S. deployments in Greenland could provoke countermeasures. Economically, Russia treats the Northern Sea Route as a controlled corridor, requiring permits and icebreaker fees, and is shifting LNG exports toward Asia. Through the Polar Silk Road, China funds Arctic projects and gains access to strategic routes, with joint missions also serving military mapping purposes. Russia views this shipping as a way to finance and secure its Arctic ambitions while reducing dependence on the West.

Denmark

In early 2026, U.S.–Denmark tensions over Greenland peaked as the U.S. pushed for control using diplomatic pressure and provocative messaging. Denmark rejected all overtures, insisting on sovereignty, and reportedly prepared to sabotage key infrastructure to block any unilateral U.S. takeover. As a result, Denmark has established an Arctic Endurance initiative in 2026; its largest-ever military exercise in Greenland. Denmark’s Lomonosov Ridge claim argues the seabed is part of the Greenlandic shelf, covering nearly 900,000 km² and overlapping Russian and Canadian claims

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V. Timeline of Events



1996: The Ottawa Declaration

The formal establishment of the **Arctic Council**. This marked the beginning of an era known as "Arctic Exceptionalism," where the eight Arctic nations agreed to prioritize environmental protection and scientific research over military competition.

2001: Russia's First Seabed Claim

Russia became the first country to submit a formal claim to the United Nations Commission on the Limits of the Continental Shelf (CLCS). They argued that the **Lomonosov Ridge**—an underwater mountain range—is a geological extension of the Russian landmass, which would grant them rights to the North Pole's seabed.

2007: The Titanium Flag Incident

In a highly publicized move, a Russian submersible planted a rust-proof titanium flag on the seabed directly beneath the North Pole. While the act carried no legal weight under international law, it triggered a sharp diplomatic response from Canada and the U.S., signaling the end of "exceptionalism" and the start of a new resource race.

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2008: The Ilulissat Declaration

Meeting in Greenland, the "Arctic Five" (U.S., Russia, Canada, Norway, and Denmark) signed a pledge to remain committed to the legal framework of the **UNCLOS**. They agreed to resolve overlapping maritime boundaries through science and diplomacy rather than military force.

2014: Russian Military Re-entry

Following geopolitical shifts in Europe, Russia created the **Arctic Strategic Command**. They began a multi-year project to refurbish dozens of Soviet-era landing strips, ports, and radar stations across their northern coastline to secure the **Northern Sea Route**.

2022: Resolution of the "Whiskey War"

In a rare moment of modern diplomatic success, Canada and Denmark reached a deal to divide **Hans Island** in the Kennedy Channel. This ended a decades-long dispute and created a land border between the two nations, proving that Arctic sovereignty can still be settled through negotiation.

2023: U.S. Extended Continental Shelf (ECS) Announcement

In December, the United States State Department unilaterally released coordinates for its **Extended Continental Shelf**, claiming roughly 288,000 square nautical miles of seabed. This move was controversial because the U.S. has still not ratified UNCLOS, leading to legal pushback from Russia.

2024: The "Arctic Seven" Alignment

With Finland and Sweden officially joining NATO, the Arctic Council became lopsided. Seven of the eight permanent members were now part of the same military alliance, effectively isolating Russia and ending most forms of high-level intergovernmental cooperation in the region.

2026: The Greenland Sovereignty Crisis

In early 2026, diplomatic relations between the U.S. and Denmark reached a breaking point. Following U.S. pressure to expand its military footprint in Greenland, Denmark launched the **Arctic Endurance** initiative. This 2026 exercise is the largest in Danish history, designed to assert that Greenland remains under Copenhagen's control despite U.S. strategic interests.

2026: High Seas Treaty Implementation

The UN's **Agreement on Marine Biological Diversity (BBNJ)** officially went into effect this year. This created a new legal hurdle for any nation wishing to drill or mine in the "High Seas" area of the central Arctic, making the ongoing seabed claims on the Lomonosov Ridge even more critical for future resource access.

VI. Relevant UN Treaties and Events

(apart from the aforementioned ones)

- **United Nations Convention on the Law of the Seas (1982):** Basic legal text defining regime of law and order for the world's oceans, establishing rules for the allocation of States' rights and jurisdiction in maritime spaces.

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- **Agreement on Marine Biological Diversity of Areas beyond National Jurisdiction (2023):** Address the growing biodiversity crisis for ocean life outside the Exclusive Economic Zone (EEZ).



VII. Previous Attempts to Solve the Issues

Diplomatic Initiatives and Peace Processes

The primary vehicle for regional stability has been the Arctic Council, established in 1996. For over 20 years, it successfully maintained "Arctic Exceptionalism"—the idea that the North should remain a zone of peace regardless of global tensions. However, this process was severely strained following the 2014 annexation of Crimea and effectively fractured in 2022. By 2024, the "Arctic Seven" (all members except Russia) shifted toward a NATO-centric security model, marking a significant departure from previous consensus-based diplomacy.

International Cooperation and Intelligence Sharing

Historically, cooperation was most visible in Search and Rescue (SAR) and oil spill response. The 2011 Arctic SAR Agreement was the first legally binding instrument negotiated under the Arctic Council, forcing nations to share data and resources to save lives in the harsh polar environment. While scientific data sharing on climate change was once the "gold standard" of Arctic cooperation, recent years have seen a decline in transparency, with intelligence sharing now largely restricted to Western allies through operations like Arctic Sentry.

Development and Reconstruction Programs

Attempts to manage the region's growth have often focused on sustainable infrastructure. Canada's "Borealis" plan and Russia's massive investment in the Northern Sea Route (NSR) represent internal attempts to develop the region. Internationally, the Polar Silk Road—a partnership between China and Russia—has attempted to create a commercial alternative to traditional shipping routes. However, these programs often prioritize economic extraction and military logistics over the holistic environmental protections sought by international activists.

Legal and Regulatory Frameworks

The most significant attempt to provide "rules of the road" has been the United Nations Convention on the Law of the Sea (UNCLOS). This framework provides the legal basis for countries to submit scientific evidence to the Commission on the Limits of the Continental Shelf (CLCS) to extend their maritime borders.

- The Ilulissat Declaration (2008): A landmark agreement where the Arctic Five blocked the idea of a new "Arctic Treaty" (similar to the Antarctic Treaty), opting instead to stick to UNCLOS.
- The High Seas Treaty (2026): The most recent legal attempt to solve the "Donut Hole" issue—the area of international water in the central Arctic Ocean. By making it illegal to drill in these waters regardless of seabed claims, this treaty serves as a regulatory "firewall" against total industrialization of the North Pole.

VIII. Possible Solutions

- **A Joint Development Zone:** a temporary maritime arrangement where two or more states agree to jointly manage and share resources in an overlapping disputed area.
- **The "Indigenous-First" Solution:** Listening to the native population making it possible for the local people to manage their land and waters together across borders. It centers the voices, rights, and knowledge of Arctic Indigenous peoples ensuring that development and security policies do not harm traditional ways of life.
- **Protecting the Arctic Region:** Treating the Arctic Region as a park, banning all mining and military activity to only allow scientific research. In 2026, the High Seas Treaty officially went into effect, making it illegal to drill it, no matter who claims the seabed.

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IX. Sources and recommended reading

1. **United Nations Convention on the Law of the Sea (UNCLOS), 1982**

Link: [UNCLOS Full Text](#)

2. **The Ilulissat Declaration, 2008** (Agreement of the Arctic Five on regional governance)

Link: [Ilulissat Declaration](#)

3. **The BBNJ Agreement (High Seas Treaty), 2023**

Link: [BBNJ Agreement](#)

4. **The Ottawa Declaration** on the Establishment of the Arctic Council, 1996

Link: [Ottawa Declaration](#)

5. **International Maritime Organization (IMO) Polar Code**

Link: [IMO Polar Code Overview](#)

6. **Arctic Council Strategic Plan 2021–2030**

Link: [Arctic Council Strategic Plan](#)

7. **U.S. Department of State: U.S. Extended Continental Shelf (ECS) Project (2023–2026)**

Link: [U.S. ECS Executive Summary](#)